

26CV00400 Shea Connelly Development LLC, Remediation Financial Inc, Bermit Recovery vs Foley Bezek Behle & Curtis

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-09-23

Motion: Motions to Withdraw as Attorney (3)

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Tentative Ruling: Shea Connelly Development LLC, Remediation Financial Inc, Bermit Recovery vs Foley Bezek Behle & Curtis

Case Number

26CV00400

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 09/23/2026 - 10:00

Nature of Proceedings

Motions to Withdraw as Attorney (3)

Tentative Ruling

Plaintiff and Cross Defendants by Regis Guerin

Defendant by Thomas G. Foley

RULING

The 3 motions are granted. There are [proposed] Orders submitted that the Court intends to sign.

The CMC set for November 18, 2026, at 8:30 AM is confirmed.

Regis Guerin to give notice.

Analysis

This case was filed 1/14/26. It is characterized as a Rejection of Arbitration Award and Request for Trial.

These are three unopposed motions of attorney Regis A. Guerin, The Guerin Law Firm, to be relieved as counsel for the three respective defendants.

On 7/16/26 Regis A. Guerin filed the Motion to Withdraw supported by his Declaration; summarized: There has been a breakdown of the attorney-client relationship between counsel for Shea Connelly Development, LLC and its principal, Bart Shea such that counsel for Shea Connelly Development, LLC can no longer represent it. Client has breached a material term of the written fee agreement, including the failure to pay for legal services rendered as required. Clients' non-payment has made it unreasonably difficult for moving counsel to effectively carry out the employment. Client has not consented to sign a voluntary Substitution of Attorney. The relationship of trust and confidence essential to the attorney-client relationship has ceased to exist, and irreconcilable differences have arisen between counsel and Client regarding the handling of this matter and the payment of fees.

The Court's Conclusions

Motions should be granted.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

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